

****September 26, 2023****

****Sanction for GDPR Violation****

The National Authority for the Supervision of Personal Data Processing completed an investigation in September 2023 regarding the operator RESTART ENERGY ONE S.A. and found a violation of the provisions of Article 32 paragraph (1) letters b) and d), in conjunction with Article 32 paragraph (2) of Regulation (EU) 2016/679, as well as Article 4 paragraph (5) of Law no. 506/2004 on the processing of personal data and the protection of privacy in the electronic communications sector, as amended and supplemented.

As such, the operator was sanctioned with:

- a fine of 124,150 lei, equivalent to 25,000 EURO, for the violation of Article 32 paragraph (1) letters b) and d), in conjunction with Article 32 paragraph (2) of Regulation (EU) 2016/679;
- a fine of 40,000 lei for the violation of Article 4 paragraph (5) of Law no. 506/2004.

The investigation was initiated following a complaint regarding a potential breach of personal data security on the operator's website.

During the investigation, it was found that there was a breach of data security in that a file on the operator's website containing personal data (name, surname, address, phone numbers, email addresses, contract number, and the date of its conclusion) for at least 750 data subjects was publicly accessible through a link generated by search engines for a period of approximately 2 and a half years.

It was also found that by accessing the website managed by the operator, cookies that are not technically necessary were installed on the user's device before consent was granted by pressing the Accept button, and expressing disagreement by accessing the Refuse button regarding the installation of these cookies had no influence on them, as they remained installed in their original form for a certain period of time on the user's device.

In addition to the fines, the National Authority for the Supervision of Personal Data Processing also applied corrective measures, ordering the operator to implement a procedural plan that includes a process of testing, evaluating, and periodically assessing all systems and subsequent modifications made by the operator or service providers (authorized persons), especially regarding the website managed by the operator.

****Legal and Communication Department****

****N.A.S.P.D.C.P.****